

submitted in support of the motion is insufficient for this purpose. The court cannot fairly evaluate the reasonableness of the request for fees in light of the information that has been provided.

Merchants may file and serve a supplemental declaration in support of its motion by October 13, 2026, which either includes copies of billing statements (which may have privileged information redacted), or a detailed summary of the number of hours expended by each attorney on each discrete task. This motion is continued to **October 27, 2026 at 8:30 a.m. in Department 32.**

8. S-CV-0055092 Taylor, Michele Ann v. Rosebay

This tentative ruling is issued by **Commissioner Albert A. Erkel**. If oral argument is requested, it will be heard on **September 15, 2026 at 8:30 a.m. in Department 30 by Commissioner Erkel.**

Motion to Set Aside Discovery and Sanctions Order

Defendant Karrie Nicole Taylor moves pursuant to Code of Civil Procedure section 473(b) to set aside the April 10, 2026 order granting plaintiff's motion to compel further responses and awarding monetary sanctions. Plaintiff opposes the motion.

The court may "upon any terms as may be just" set aside an order due to the moving party's "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Section 473(b) encompasses the court's discretionary relief to set aside "a judgment, dismissal, order, or other proceeding" due to "the party's mistake, inadvertence, surprise, or excusable neglect," or mandatory relief to set aside default, default judgment, or dismissal based on an "attorney's mistake, inadvertence, surprise, or neglect." (*Ibid.*) A motion to set aside an order must be made "within a reasonable time, in no case exceeding six months" from the entry of the order. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence, even when the motion is brought within the six-month period. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, defendant submits evidence that defense counsel did not receive service of the motion to compel further responses served by email on March 11, 2026 noticed for April 10, 2026 because counsel uses a software that quarantined the email serving the motion papers as well as another email from plaintiff's counsel the same day. Defendant further submits evidence that this problem was compounded by counsel's paralegal taking ill with a sudden and reoccurring illness resulting in frequent absences. Plaintiff submits evidence that plaintiff's counsel sent defense counsel a meet and confer email on March 2, 2026 and a follow-up on March 9, 2026 and left a voicemail on March 11, 2026 before the motion to compel was ever filed. Plaintiff submits further evidence that plaintiff's counsel sent a follow-up email on April 1, 2026 prior to the motion being ruled on. While defense counsel knew about the ruling at least by May 8, 2026, an additional 54 days passed before the instant motion was filed. Defendant does not explain this lapse of time.

Based on the foregoing, the motion is not supported by sufficient diligent efforts to obtain Code of Civil Procedure section 473(b) relief. The motion is accordingly denied.

9. S-CV-0056043 Hill Top Center v. Kelly Architectural & Planning

Plaintiff's Motion to Compel Responses to Discovery without Objections and for Monetary Sanctions

Plaintiff Hill Top Center, LLC's objections to defense counsel, Dennis Wilson's declaration are overruled.

Plaintiff Hill Top Center, LLC's unopposed motion to compel responses to discovery without objections, is granted. Defendant Kelly Architecture & Planning, Inc. shall serve verified responses, without objections, to plaintiff's demand for inspection of documents, within 10 days. Plaintiff's request for monetary sanctions against defendant Kelly Architecture & Planning, Inc., is granted in the amount of \$1,200.

Plaintiff's Motion for Leave to File First Amended Complaint

Plaintiff Hill Top Center, LLC's unopposed motion for leave to file first amended complaint is granted. Plaintiff Hill Top Center, LLC shall file and serve the first amended complaint by **September 28, 2026**.

**10. S-CV-0056103 Gilchrist, Debra v. Ruth, Charity
R-SC-0028791 Gilchrist, Debra v. Ruth, Charity
R-SC-0028916 Gilchrist, Debra v. Ruth, Charity**

Motion to Consolidate

Defendants move to consolidate three separate actions. Plaintiff opposes the motion. The court notes plaintiff filed a response to the reply without leave of court, and the court declines to consider it.

The court may order consolidation of actions involving a common question of law or fact. (Code Civ. Proc. § 1048 (a).) Consolidation for all purposes is appropriate when the parties between the actions are identical. (*Sanchez v. Super. Court* (1988) 203 Cal.App.3d 1391.) Consolidation does not alter the parties' rights; rather, its purpose is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions. (*Est. of Baker* (1982) 131 Cal.App.3d 471, 485.) Relevant factors for consolidation, therefore, include: the predominance of common legal or factual issues; overlap in evidence and witnesses; the convenience of parties and attorneys; the relative advancement of the actions; and judicial efficiency. (*Todd-Stenberg v. Dalkon Shield Claimants Tr.* (1996) 48 Cal.App.4th 976, 979-80; *Est. of Baker*, 131 Cal.App.3d at 485.)